

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Khairul Alam

Civil Revision No. 472 of 2024

Habiba Yeasmin and others.

..... -Petitioners.

-Versus-

Most. Khadeja Begum and others.

..... Opposite parties.

Mr. H.M. Borhan, Advocate

..... For the petitioners.

Mr. Md. Uzzal Hossain, Advocate

..... For the opposite parties.

Heard on: 03.07.2025 and

Judgment on: 07.07.2025.

This Rule was issued calling upon the opposite parties No. 1 and 2 to show cause as to why the judgment and order dated 21.06.2023 passed by the learned Additional District Judge, 5th Court, Jashore in Civil Revision No. 25 of 2022 affirming the order dated 22.08.2022 passed by the learned Senior Assistant Judge, Sadar, Jashore in Title Suit No. 177 of 2009 should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Relevant facts for disposal of the Rule are that the present opposite parties No. 1 and 2, as plaintiffs, filed Title Suit No. 177 of 2009 in the Court of Senior Assistant Judge, Sadar, Jashore for declaration of title, partition, and also for a declaration that the compromise judgment and decree dated 17.06.2009 passed in Title Suit No. 51 of 2009 is illegal and not binding upon them. The case of the plaintiffs, in short, is that the plaintiffs purchased the suit land by a registered kabala deed bearing No. 1776 dated 22.02.2009. The land was mutated in their names in Mutation Case No. 4181/9-1/08-09.

According to the plaintiffs, the defendants obtained the compromise decree by practicing fraud, hence the suit. The petitioners herein, as defendants, have been contesting the suit by filing written statements denying the material allegations made in the plaint. After conclusion of the evidence, the suit was fixed for argument. Subsequently, on the prayer of the plaintiffs, the plaint was amended, and consequently, on the prayer of the defendants, they were allowed to file additional written statements. At that stage, the plaintiffs filed a list of three witnesses to be examined. The application was allowed by the trial court on 21.06.2023. Against the said order, the defendants filed Civil Revision No. 25 of 2022 before the District Judge, Jashore which was subsequently transferred to the Court of Additional District Judge, 5th Court, Jashore who by judgment and order dated 22.08.2022 dismissed the civil revision and thereby affirmed the order passed by the trial court.

Being aggrieved, the petitioners filed this civil revision and obtained the Rule along with an order of stay.

Mr. H.M. Borhan, the learned Advocate appearing for the petitioners submits that after conclusion of the trial and fixing the date for argument, allowing an application for adducing additional witnesses is beyond the provision of law, and as such, the impugned judgment and order is liable to be set aside.

On the other hand, Mr. Md. Uzzal Hossain, the learned Advocate appearing for the opposite parties submits that both the courts below upon proper consideration of the facts and law passed the impugned judgment and order, and this Court, in its revisional jurisdiction should not interfere with the concurrent findings of fact.

Heard the learned Advocates and perused the revisional application along with other materials on record.

It appears that after conclusion of trial and fixing a date for argument, the plaint was amended and an additional written statement was filed. At that stage, the plaintiffs filed an application to examine three witnesses which was allowed and in revision the same was affirmed.

It is a well-settled principle that once an amendment of the pleading is allowed, such amendment relates back to the date of institution of the suit. Consequently, the suit must be taken out of the list of peremptory hearing to enable the parties to adduce further evidence to prove their respective cases.

In view of the above facts and circumstances, I am of the view that both the courts below, upon proper consideration of the facts and law, passed the impugned judgment and order and hence, I do not find any reason to interfere with the same.

Accordingly, the Rule is discharged without any order as to costs.

The order of stay passed at the time of issuance of the Rule is hereby recalled and vacated.

Let a copy of this judgment and order be communicated at once.

Kashem/B.O